LEAVE & LICENCE AGREEMENT

THIS DEED OF LEAVE AND LICENCE MADE ON THIS 18th Day of January 2019

BETWEEN

Name: ABC_OWNER

Add: xxxxxxxxxxxxx xxxxxxxxxxxxxx xxxxxxxxxxxxxxxxxx

PAN:

Hereinafter called as "OWNER" and / or LICENSOR OF THE ONE PART

AND

Name: XYZ

Add: xxxxxxxxxxxxx xxxxxxxxxxxxxxxxx

PAN:

Here in after called as LICENSEE OF THE OTHER PART.

Whereas the party of the one part is the owner of the premises, which is admeasuring about approx. 960 sq. ft., constructed on the property, located at XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX

This is also described in the Schedule hereunder written. The said premise is the subject matter of this license agreement (hereinafter referred to as the "SAID PREMISES").

AND WHEREAS the party of the one part did not presently require the said premises and hence intended to give the same on leave and license basis for temporary period. The party of the other part required for residential purpose. Accordingly the party of the other part approached the party of the one part and proposed to take the said premises for temporary period on the leave and license.

AND WHEREAS the Licensor accepted the said request of the Licensee and agreed to grant the said premises to the Licensee on certain terms and conditions.

AND WHEREAS the party of the one part, as proposed by the Licensee has agreed to grant license and allow the party of the other part to use the said premises for a period of 11 months commencing from 20th January 2019 to 19th December 2019. on Leave & License basis on the following terms and conditions.

NOW THEREFORE THIS DEED WITNESSES AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AS UNDER

1. GRANT OF LICENCE: The Licensor hereby permits and grants license and the Licensee hereby accepts to use as the said premises for the purpose of Residential use for a term of 11 months on leave and license basis. The license period shall be deemed to have commenced 20th January 2019 to 19th December 2019.

2. SECURITY DEPOSIT: For the grant of the licensee has paid on the execution of this deed an amount of Rs. 1,00,000/- (RUPEES One Lakh Only ONLY) to the Licensor as a refundable security deposit

towards the grant of the license. The Licensor admits and acknowledges the receipt of the said amount. No Interest is paid on the said security deposit.

3. LICENSE CHARGES / COMPENSATION: The Licensee shall pay license charges of an amount of Rs.12,500/- (RUPEES Twelve Thousand Five Hundred ONLY) per month for the 11 months for the use of the said premises . Maintenance amount should be paid directly to the society or to the owner as per directions from the owner.

4. PAYMENT OF LICENSE CHARGES: The licensee shall pay the said monthly license in advance on or before 5th of each month according to English calendar and shall not commit default in paying the same.

5. ELECTRICITY & WATER CHARGES: That is addition to the monthly compensation as aforesaid the licensee shall pay the electricity and water charges as per the reading of the meters to the appropriate authorities regularly, failing which the Licensor has every right to terminate the present agreement.

6. RATES & TAXES: All the municipal taxes in respect of the said premises shall be borne and paid by the Licensor alone. All other levies, taxes shall be borne and paid by the Licensor alone.

7. SUBLETTING: That the Licensee shall not be entitled to sublet the said premises to any other person/s or organization/s and shall use it exclusively only for residential purpose.

8. REPAIRS: The Licensee shall not do any act whereby the said premises or its fixtures or fittings are damaged. The Licensee shall maintain the premises in a proper condition and shall be liable to rectify and repair the premises in case of any damage is caused to the same due to the acts of the Licensee and in case the licensee fails to rectify / repair the same then in such case the licensor shall; be entitled to claim the damages and shall deduct the damages from the amount kept as security deposit. If the damages are more than the security deposit which is kept with the

Licensor, the Licensor is entitled to recover all the amount from the Licensee and the Licensee has accepted and acknowledge the same.

9. PERMANENT ALTERATION: That the Licensee shall not be entitled to make any kind of permanent alteration or addition in the said premises except with the written prior consent of the Licensor.

10. INSPECTION: That the Licensor or his authorized representative shall be entitled to inspect the said premises at all reasonable time. The Licensee shall keep all fixtures, electric fittings, water connections in good running condition.

11. BREAKGE : That the Licensee shall be responsible for any breakage to the said premises or fixtures and fittings therein, occurring during the period of license except due to ordinary climate or atmospheric wear and tear or causes beyond licensee's control and natural calamities.

12. TO KEEP THE PREMISES CLEAN AND TIDY: That the licensee should keep the premises clean and tidy and use the premises for which purpose it is given.

13. FORFEITURE: That the Licensee covenants with the Licensor that all his rights under the License shall be liable to be forfeited, in case of breach of any of its covenants like payment of monthly compensation, subletting of the premises etc. in which case the licensor shall be entitled to resume possession of the said premises immediately.

14. JUDICIAL POSSESSION: That at all times, the judicial possession of the said premises shall be of the Licensor. The Licensee has been merely granted permission to use the said premises and fixtures

and fittings on leave and license basis and the Licensee shall hand it over on the expiry of the stipulated period, unless it has been renewed, extended or changed mutually by and between the parties.

15. LICENSEE NOT ENTITLED TO ASSIGN: The Licensee shall not assign, transfer, sublicense or part with the said premises or any part thereof, in any manner whatsoever, at any time during the continuance of this agreement or thereafter.

16. NUISANCE & ANNOYANCE: The Licensee shall not do or cause to do or permit to do any act which would amount to nuisance or annoyance to the neighbouring occupiers and shall not do or permit to do any immoral acts in the said premises and shall not do any act, deed or thing whereby the Licensor suffers any loss or damage or which may cause disturbance to the Licensor or to the neighbouring occupiers.

17. LICENSEE SHALL ABIDE BY LAW: The Licensee shall not do anything which is not permissible or which is prohibited under the law or is in contravention of any bye-law, rules and regulations or any order.

18. PREMISE FREE FROM ENCUMBRANCES: The Licensor hereby declares that the said premise is free from all encumbrances and there is no hindrance for the licensor to grant this license to licensee.

19. TERMINATION BY LICENSOR: Before the expiry of the period of license, the Licensor is entitled to terminate the license of the licensee with a one months' written notice in advance to the licensee.

20. TERMINATION BY LICENSEE: If the licensee intends to vacate or terminate the Premises before the expiry of license period, he shall first give one months’ notice in writing to the Licensor informing of his intention for vacating and termination of this agreement. On the expiry of such notice the licensee shall vacate the premises and this agreement shall stand terminated. Failure to give 1 months’ notice makes Licensee pay 1 month’s rental.

21. TO VACATE: Upon termination of the license or upon the expiry of the License period the Licensee shall quit, and vacate the said premises on or before the expiry of the period of this license deed i.e. on or before 19th December 2019.

22. REFUND OF SECURITY DEPOSIT: The Licensor shall refund the 100% amount of the security deposit to the Licensee on vacation of the premises by the Licensee, subject to the deductions of any amount recoverable from the licensee under this agreement.

23. REMEDY AGAINST THE LICENSEE: If the Licensee fails to quit and vacate the said premises to the owner then in that case the Licensor shall be entitled to forfeit the security deposit amount and proceed to recover possession from the license in the court.

24. NO CLAIM OF TENANCY: It is clearly understood between the parties to this deed that no relationship of landlord and tenant exists between them and that the Licensor has not granted tenancy rights in the said premises to the Licensee by this deed. The Licensee shall not make any claim of tenancy in the said premises.

25. PARTNERSHIP: Nothing herein contained shall constitute a partnership or a joint venture or any other relationship between the parties except that of the licensor and licensee.

26. RIGHT TO VACATE: Upon termination of the license or upon expiry of the license period the licensee shall not be entitled to enter upon the said premises, except for removing his belongings etc. and the licensor shall be entitled to a free and unobstructed access to the said premises,

including the right of breaking open of the locks etc. and removing the belongings/articles/persons etc. of the licensee from the

said premises and vacate the premises and it shall be deemed as if the licensor has been specifically irrevocably empowered, authorized and consented by the licensee to remove the properties etc. from The said premises and take possession. All the costs of such vacation shall be recoverable by the Licensor and till the said costs are paid the licensor shall have a lien on the Property/belonging etc. as may have been removed from the said premises.

27. ADDRESS FOR COMMUNICATION: That any communication made by and between parties at the address mentioned above shall deemed to have been duly received in due course of time.

28. NO WAIVER: It is agreed that any indulgence shown or any delay on the part of licensor to evict the licensee or non-action of the licensor against the licensee for the non- observance of the terms or breach of the terms of this deed shall not be construed as waiver or surrender of any rights of the Licensor and shall not prejudice the rights of the licensor.

29. FREE CONSENT: The Licensee has duly executed this agreement after clearly understanding the implications and consequences of the agreement and they have signed hereunder by their free will and free consent

30. THEFTS OR LOSS: Licensor shall not be responsible or liable for any theft or loss, damage of property of licensee neither any bodily injury to any reason in licensed premises.

31. The parties hereto have executed this license on Non Judicial stamp paper the original license shall remain with Licensor & copy thereof with Licensee.

32. The house needs to be repainted & cleaned by the tenant at his cost at the time of vacating the apartment.

33. The advance deposit will be refunded to the licensee only after the licensee returns all the original keys given to him at the time of moving in, and after deducting any repair charges.

34. The licensee will ensure all the fittings and fixtures (lights, fans, geysers, shelves, cabinets, taps, etc.) in the house are in a proper working condition during his stay and until he vacates the property.

35. The Licensee should pay the move in / Move out charges to the society, as per the society regulations.

DESCRIPTION OF THE SAID PREMISES:

All that consisting of premises, at

xxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxxx

Annexure

Sr. No. Fixtures Description Quantity

1. TUBE LIGHTS 4

2. LIGHTS 4

5. GEYSER 2

6. WARDROBES 4

7. CERAMIC SINK 2

8. STEEL SINK 1

9. EXHAUST FAN 2

10. MIRRORS 2

11. MODULAR KITCHEN WITH DRAWERS & WARDROBES

*All Amenities are in good working condition as mentioned above.

IN WITNESS, WHEREOF THE PARTIES TO THIS DEED HAVE SIGNED HEREUNDER ON THE AFORESAID DATE AT Bangalore.

LICENSOR:

Name: ABC_OWNER

Email: Signature

Phone:

LICENSEE:

Name: ABC

Email: Signature

Phone:

IN THE PRESENCE OF WITNESS

Name: MNO_WITNESS_1

Email: Signature

Phone:

Name: MNO_WITNESS_2

Email: Signature

Phone: